31

NATIONAL COMPANY LAW TRIBUNAL
BENGALURU BENCH
COURT NO.1

ATTENDANCE CUM ORDER SHEET OF THE HEARING OF NATIONAL COMPANY LAW TRIBUNAL, BENGALURU BENCH, BENGALURU, HELD ON 30.04.2019

PRESENT: 1.Hon'ble Member (J) **Shri Ratakonda Murali**
2. Hon'ble Member (T) **Dr. Ashok Kumar Mishra**

CP/CA No.	Purpose	Sec	Name of Petitioner	Petitioner Advocate	Name of Respondent	Respondent Advocate
CP(CAA) No. 32/BB/2017 & CP(CAA) No. 31/BB/2017	For hearing on IA 204/19	Sec 230-232 of CA 2013	M/s Grameen Koota Financial Services Pvt Ltd & M/s Microfin Pvt Ltd	Dua Associates		

ADVOCATE FOR PETITIONER/s:
BHUVANA - S.P.
DUA ASSOCIATES.
9916316160

ADVOCATE FOR RESPONDENT/s:

ORDER

IA.No.204/2019 is listed today for hearing. Heard the Counsel. IA No.204/2019 is allowed by separate order.

MEMBER (T) **MEMBER (J)**

Shruthi

IN THE NATIONAL COMPANY LAW TRIBUNAL
BENGALURU BENCH

IA No.204/2019 in
C.P(CAA)No.31&32/BB/2017
Under Rule 11 of NCLT Rules, 2016

In the matter of:

Grameen Koota Financial Services Private Limited
Name since changed as CreditAccess Grameen Limited
Rep.by its Managing Director and
Chief Executive Officer,
Mr. Udaya Kumar
New No.49 (Old No.725),
46th Cross, 8th Block,
Jayanagar
(Next to Rajalakshmi Kalyana Mantap),
Bengaluru – 560071. - Petitioner Company/ Transferee Company

And

M/s. MV Microfin Private Limited
New No.49 (Old No.725),
46th Cross, 8th Block,
Jayanagar,
Bengaluru – 560071. - Transferor Company

Date of Order: 30th April, 2019

Coram: 1. Hon'ble Shri Ratakonda Murali, Member (Judicial)
2. Hon'ble Dr. Ashok Kumar Mishra, Member (Technical)

Parties/Counsels Present:

For the Petitioner/Transferee Company : Ms. Bhuvana.S.P
For the TransferorCompany : None.

ORDER

Per: Ratakonda Murali, Member (J)

1. This Application is filed on behalf of the Petitioner/Transferee Company.

2. The averments in the Application this Tribunal by Common Order dated 22nd November, 2017 in Company Petitions bearing CP(CAA)No.31/BB/2017 and CP(CAA)No.32/BB/2017 ("Order"), approved and sanctioned the Scheme of Amalgamation of MV Microfin Private Limited ("Transferor Company") with Grameen Koota Financial Services Private Limited ("Petitioner/Transferee Company").

3. The Petitioner Company alleged the address of the Transferor Company and Transferee Company are wrongly mentioned as "The Senate, Ground, First and Second Floor, Khatha No.33/1, Ulsoor Road, BBMP ward No.81, Bengaluru – 560 042" as against its correct address as mentioned in the cause title of this Application and of the Company Petition being, New No.49 (Old 725), 46th Cross, 8th Block, Jayanagar (Next to Rajalakshmi Kalyana Mantap), Bengaluru – 560 071, Karnataka, India.

4. The address of the Transferor Company and the Transferee Company are mentioned correctly in the body of the Order at Pages 2 and 3. Therefore, this Tribunal be pleased to rectify the error made in the address shown in cause title of Transferor Company and Transferee Company.

5. We have heard the Counsel for Applicant who have gone through the order dated 22.11.2017, it is true the addresses of the

Companies shown in the cause title of the order are different from the addresses shown in page No.2 and 3 of the Order.

6. Thus, error apparent on the record in respect of the addresses shown in the cause title of the Order for the Petitioner Companies.

7. According to Rule 154 of NCLT Rules 2016, which reads as under:

"154. *Rectification of Order.-*

(1) Any clerical or arithmetical mistakes in any order of the Tribunal or error therein arising from any accidental slip or omission may, at any time, be corrected by the Tribunal on its own motion or on application of any party by way of rectification.

(2) An application under sub-Rule (1) may be made in Form No. NCLT. 9 within two years from the date of the final order for rectification of the final order not being an interlocutory order".

8. The Tribunal has power under Rule 154 of NCLT Rules, 2016 to rectify the order if any error occurred is discovered. Therefore, we order for correction of the address of Petitioner Companies as shown in the cause title and Registry is directed to issue Corrigendum accordingly.

(ASHOK KUMAR MISHRA)
MEMBER, TECHNICAL

(RATAKONDA MURALI)
MEMBER, JUDICIAL

Shruthi

IN THE NATIONAL COMPANY LAW TRIBUNAL
BENGALURU BENCH

IA No. 204 of 2019 in
CP (CAA) No.31 & 32 of 2017

Under Section 230 to 232 of Companies Act, 2013
Read with Rule 11 & 154 of NCLT Rules, 2016

IN THE MATTER OF SCHEME OF AMALGAMATION

BETWEEN

GRAMEEN KOOTA FINANCIAL SERVICES PRIVATE LIMITED
(name since changed to Creditaccess Grameen Limited)
AND

MV MICROFIN PRIVATE LIMITED

For the Petitioners: Ms. Bhuvana S.P.,
Advocate

CORRIGENDUM

With respect to the Order dated 22nd November 2017 in the above stated matter, the following corrigendum is issued as per the Bench Order dated 30.04.2019:

1. The address of the Transferor Company and Transferee Company in the cause title of the Order dated 22nd November 2017 shall be read as "New No.49, (Old 725), 46th Cross, 8th Block, Jayanagar (Next to Rajalakshmi Kalyana Mantap), Bengaluru-560071, Karnataka, India".
2. This may be read as part and parcel of the Order dated 22nd November 2017.

30/4/19
Deputy Registrar,
NCLT Bengaluru Bench

Date: 30th April 2019